

HOUSE No. 4063

The Commonwealth of Massachusetts

PRESENTED BY:

Joan Meschino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect residents experiencing significant elevations in rent for viable and effective affordable housing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joan Meschino</i>	<i>3rd Plymouth</i>	<i>1/16/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/27/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>11/19/2025</i>

HOUSE No. 4063

By Representative Meschino of Hull, a petition (accompanied by bill, House, No. 4063) of Joan Meschino and Carmine Lawrence Gentile relative to increases of the annual rent of affordable housing units and for rental unit and project oversight. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect residents experiencing significant elevations in rent for viable and effective affordable housing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 186 of the General Laws is hereby amended by adding the following section:-

2 Section 32. (a) For the purposes of this section, the following words shall, unless the
3 context clearly requires otherwise, have the following meanings:-

4 “Access to counsel program”, a statewide access to counsel program to provide full legal
5 representation to tenants in housing matters related to affordable housing units and to be funded
6 by a specifically dedicated general court appropriation.

7 “Affordable housing unit”, a dwelling unit where the rent is affordable to a household
8 whose annual income, adjusted for family size, is equal to or less than 80 per cent of area median
9 income as defined by the executive office.

10 “Affordable housing unit equity dashboard”, a collection of data that measures, tracks
11 and reports on the impact of affordable housing units in the commonwealth.

12 “Executive office”, the executive office of housing and livable communities.

13 “Landlord”, the owner, lessor or sublessor of an affordable housing unit.

14 “Tenant”, a person who has entered into an oral or written lease or rental agreement with
15 the landlord for the rental of an affordable housing unit.

16 (b) A landlord shall not increase the annual rent of an affordable housing unit by more
17 than 3.5 per cent. If the market rate for rental units owned by a landlord in the rental project
18 decreases, the landlord shall decrease the rent of the affordable housing unit by the percent
19 amount equal to the market rate decrease.

20 (c) If a landlord desires to increase the rent of an affordable housing unit, the landlord
21 shall provide a written request to the executive office and to the select board of the town or the
22 mayor of the city where the affordable housing unit is located at least 120 days prior to the
23 proposed effective date of the rent increase. The request shall include the required financial
24 information to support the rent increase. The city or town shall have 60 days from the receipt of
25 the request to provide comments to the executive office. The executive office shall issue a
26 written determination to the landlord approving the request, approving the request in part or
27 denying the request. If the request is approved in part or denied, the written determination shall
28 set forth the reasons therefore. The executive office shall determine the process for submission of
29 the rent increase and review by the executive office.

30 (d) The executive office shall establish an affordable housing unit equity dashboard to
31 document and track, in an ongoing manner, the affordable housing landscape in the
32 commonwealth to foster housing equity.

(e) A landlord shall not take any fees and profit distributions on an affordable housing project that is greater than 6 per cent of the landlord's equity in the project. A landlord shall reinvest at least 4 per cent of fees and profit distributions back into the rental project including, but not limited to, maintenance and unit upgrades with a proportionate share of such reinvestment required in the affordable housing units.

(f) A tenant shall have access to free legal assistance and full representation for housing matters related to rental of an affordable housing unit under a statewide access to counsel program. Landlords shall not charge legal fees to tenants without court approval.

(g) Landlords shall work in good faith with tenants of affordable housing units for a 6-month period to resolve any disputes related to non-payment of rent through housing court mediation sessions. Landlords shall not charge fines or add administrative costs to tenants during the 6-month cure period.

(h)(1) There shall be a task force to ensure that regulatory agreements meet current municipal oversight needs and identify possible opportunities for additional technical assistance to municipalities for rental unit and rental project oversight. The task force shall examine: (i) the regulatory use agreement process and terms; (ii) increasing technical and legal support to municipalities; (iii) improving enforcement mechanisms; and (iv) to ensure that all components of affordable housing, rental assistance programs and other eligible housing supports are coordinated across agencies.

(2) The task force shall consist of: (i) the secretary of the executive office or a designee, who shall serve as chair; and (ii) 10 other persons appointed by the secretary, at least 3 of whom shall be municipal housing officials.

55 (3) The task force shall submit a report of its findings, including any recommendations
56 for improving regulatory agreements and enforcement thereof, and proposed legislation, if any,
57 necessary to carry out its recommendations, to the clerks of the house of representatives and the
58 senate and to the house and senate committees on ways and means, not later than December 1,
59 2026.